



Tulsa Metropolitan Area Planning Commission

Minutes of Meeting No. 2954

Wednesday, February 4, 2026, 1:00 p.m.

Tulsa City Council Chambers, 175 E. 2nd St., Tulsa, OK 74103

The notice and agenda of said meeting were posted in the City Clerk's and the County Clerk's office on January 28, 2026, at 5:02 p.m.

Members Present: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner-Addison, Walker

Members Absent: Whitlock

Staff Present: Austin Chapman, Nathan Foster, Chris Willis, Erin Roark, Susan Miller, Kim Sawyer, Jeff Stephens

County Staff Present: Kendal Davis, Sherri Tauber

Speaker Key:

- (+) indicates a speaker generally supportive of an item;
- (-) indicates a speaker generally opposed to an item; and
- (=) indicates a speaker generally neutral or who has questions about an item.

After declaring a quorum present, Chair Walker called the meeting to order at 1:03 p.m.

Reports

Chairman's Report: Mr. Walker welcomed Jeannie Cue to Planning Commission.

Director's Report: Ms. Miller reported on City Council actions and welcomed Ms. Cue to the Planning Commission. She stated staff will organize a work session to discuss several evolving items in the next few months.

Approval of Minutes

1. Minutes from Meeting 2953, January 21, 2026

Motion: Approval of the minutes of Meeting 2953 from January 21, 2026.

Motion by: Bulmash **Second by:** Shivel

Vote: 8-0-1

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Shivel, Turner-Addison, Walker,

Nays: none

Abstentions: Krug

Absent: Whitlock

Consent Agenda

None

Public Hearing – Rezoning

Item 2 was withdrawn by applicant before the meeting.

2. **CZ-577 (County) Withdrawn by applicant**

Location: East side of S. 235th West Avenue, South of W. 31st Street South and North of S. 255th West Avenue

County Commission District: 2

Applicant: Belinda A. Bentley

Action Requested: Rezoning from AG-R to AG (Continued from January 7, 2026)

DRAFT

Mr. Craddock arrived at 1:41 p.m.

3. MPD-6

Location: Multiple properties bounded by U.S. Highway 412, East 41st Street South, South 193rd East Avenue, and South 273rd East Avenue

City Council District: 6

Applicant: Fair Oaks Ranch, LLC and Rob-Wal, LLC (Continued from November 5, 2025, and January 7, 2026)

Action Requested: : Rezoning from AG to MPD-6

Staff Recommendation

The applicant is proposing a master planned development (MPD) covering the subject properties under application. MPDs are regulated by Chapter 25 of the Tulsa Zoning Code and are intended to accommodate developments that would be difficult or impossible to carry out under otherwise applicable zoning regulations. Provisions of the MPD must be consistent with the city's adopted plans.

If approved, MPDs adopt all zoning regulations for included properties. Unlike other development plans, MPDs do not include base zoning districts. All development standards are outlined in the MPD and are subject to the review and approval procedures of Section 70.040 of the Tulsa Zoning Code. TMAPC is authorized to approve minor amendments to development plans while major amendments require review by TMAPC and approval by the Tulsa City Council.

MPD-6 covers approximately 6,229 acres of property divided into 6 separate development areas which regulate uses, signage, minimum lot requirements, and building regulations. General regulations for open space, parking, landscaping and screening are also included.

The proposed development standards in MPD-6 as outlined below and in the applicant's text and exhibits are consistent with the land use designations and the recommendations of the Tulsa Comprehensive Plan. MPD-6 is consistent with the purpose and intent of the master planned development district and meets the following objectives of the Tulsa Zoning Code:

1. Variety in housing types and sizes to accommodate households of all ages, sizes, incomes, and lifestyle choices.
2. Compact, mixed-use development patterns where residential, commercial, employment, civic, and open space areas are located in close proximity to one another.
3. A transportation network designed to accommodate safe and efficient motorized and non-motorized travel.
4. Direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties.
5. Buildings and other improvements that by their arrangement, massing, design, character and site design elements establish a quality, livable environment.

With consideration given to the factors listed herein, staff recommends **approval** of the application subject to the MPD-6 development standards outlined below and in the applicant's text and exhibits attached to the staff recommendation.

MPD-6 Development Standards

Property included within the boundaries of MPD-6 will be subject to the regulations of the MPD-6 development plan. Standards for MPD-6 are found in the applicant's text and exhibits which are attached to the staff

recommendation. References in this section refer to the Fair Oaks Master Planned Development District document attached as an exhibit.

MPD-6 consists of 6 separate development areas:

1. Regional Centers
2. Town Centers
3. Town Center Neighborhoods
4. Village Centers
5. Neighborhood Centers
6. Business and Industrial Centers

Each development area is subject to the use restrictions and additional regulations of the Fair Oaks Master Planned Development District.

In accordance with Chapter 25 of the Tulsa Zoning Code, the following sections of the Fair Oaks Master Planned Development District provide the development standards for MPD-6.

Section 3 – Administration

Section 4 – Master Development Plan

Section 5 – Site Standards

Section 6 – Development Area Standards

Section 7 – Transportation Development Standards

MPD-6 does not waive, vary, or modify City of Tulsa requirements for public infrastructure which will be reviewed upon the submittal of infrastructure development plans. Section 7 of the Fair Oaks Master Planned Development District will guide future subdivision development by providing recommendations on the locations and types of public streets, alleys, and pedestrian infrastructure. The design elements of streets must meet or exceed the minimum design criteria, standards and/or regulations of the City of Tulsa, Oklahoma Department of Transportation (ODOT), Federal Highway Administration (FHWA), Manual on Uniform Traffic Control Devices (MUTCD), Public Right-of-Way Accessibility Guidelines (PROWAG), American Association of State Highway and Transportation Officials (AASHTO) Geometric Design and Roadside Design Guide, and Oklahoma Department of Environmental Quality (ODEQ).

In areas where the MPD is silent, provisions of the Tulsa Zoning Code will apply.

Terms and development standards established by MPD-6 will be found in the records of the TMAPC.

Comprehensive Plan Considerations

Land Use Plan

The subject properties contain multiple land use designations.

Regional Centers are defined by existing regional trip generators, in contrast to Local Centers. These centers should be the most connected land use pockets outside of downtown for public transit access and high-capacity arterial streets. New regional trip generators should be permitted in the area with special consideration given to transportation access and circulation. Regional trip generators include universities, malls, large medical campuses, casinos, big-box shopping centers, and very large churches.

Multiple Use areas are mostly commercial or retail uses, which include restaurants, shops, services, and smaller format employment uses. This land use designation is most common in areas of the city from earlier development

patterns, with Local Centers being more commonplace in newer parts of the city. For single properties that are commercial but surrounded by Neighborhood, Multiple Use is the preferred designation.

Local Centers serve the daily needs of those in the surrounding neighborhoods. This designation implies that the center generally does not serve an area beyond the nearby neighborhoods. Typical uses include commercial or retail uses that serve the daily needs of nearby residents. In order to introduce a regional trip generator, the entire local center designation should be amended to be Regional Center with significant input from all affected properties and nearby neighborhoods.

Employment is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The Industrial Site Suitability map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

Small Area Plans

The subject properties are not located within any adopted small area plans.

Development Era

The subject property is designated as a future growth area. These areas of the city have yet to be developed beyond agricultural uses, and they present opportunities to ensure the pattern of development is efficient and fiscally responsible. These areas typically do not have subdivision streets or connectivity beyond the mile-by-mile grid, have poor public service distribution (fire, police, transit, etc.) and lack utility infrastructure (water, sewer, broadband, etc.) Some areas also include exposed bedrock and/or extreme slopes. Priorities in these areas include ensuring the ability to provide adequate public services, the implementation of planned streets in the Major Street and Highway Plan, land use planning to establish frameworks for decision making, and conservation of natural areas.

Transportation

Major Street & Highway Plan: There are multiple MSHP designations throughout the subject properties. The transportation plan included with the MPD aligns with the recommendations of the MSHP. Right-of-way dedications consistent with the recommendations of the MSHP will be required to be made as development occurs on the subject property.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: A shared use trail is planned along the west side of the Creek Turnpike corridor. East 21st Street west of the Creek Turnpike is planned as an on-street, signed bicycle route.

Environmental Considerations

Flood Area: The subject properties contain several areas of designated floodplain. Floodplain areas are contained within proposed open space areas of the MPD. Any proposed development in designated floodplain areas will be required to comply with development restrictions applied to those areas by City of Tulsa ordinances.

Tree Canopy Coverage: Tree canopy in the area ranges between 20-50% coverage. Significant effort should be given to the preservation of mature stands of trees. Tree canopy removal should be minimized, and replacement of trees that need removing should be encouraged. Landscaping requirements included in the MPD will ensure

development is complemented by robust landscaping.

Parks & Open Space: There are no existing City of Tulsa park facilities in the area of the subject property. The MPD proposes a large amount of open space and community amenities which would be implemented as part of future development.

Zoning History

Ordinance 20244, dated November 20, 2001, established zoning for the subject property.

Applicant Comments

The applicant outlined the four-year planning process, emphasizing collaboration with city departments to create a well-planned urban community and avoid "suburban sprawl." He stated the plan preserves 1,200 acres (20%) as open space.

Speakers

(-) August Wakat, 33050 Tall Timber Trace, Trinidad Co. 81082, is opposed to the rezoning and cited ongoing legal cases and jurisdictional conflicts that he claimed prevent the application from legally proceeding. He also mentioned historical concerns about the land.

(-) Kawehi Ballou, 6318 N. 25th St., Broken Arrow, OK 74014, stated the application was procedurally unfit, citing a Secretary of State "canceled" status for one of the joint applicants (Rob Wall LLC), and a lack of critical traffic, noise, environmental, and geotechnical studies.

(-) Buchanan Dowling, 2915 E. Quaker St., Broken Arrow, OK 74014, requested a moratorium on data center expansion and deferral of MPD-6, citing a 2020 environmental report allegedly documenting significant soil and groundwater contamination (arsenic, chromium, diesel fuel) exceeding safety standards. He warned of health risks from construction dust.

(-) Cheyenna Morgan, 3336 E. 45th St., Tulsa, OK 74135, voiced concerns over unremediated coal mines and potential health impacts.

TMAPC Comments

Mr. Fugate asked if staff could verify whether any of these repeat individuals that have come before Planning Commission and asked these questions about chemicals and mining had those same concerns when they bought their land in the area, or does this simply appear to be topics addressed towards additional new construction.

Staff clarified that environmental assessments are required before construction but are handled by other agencies (like ODEQ) and do not come before the planning commission at the zoning stage. He stated it's important to remember that there are a lot of entities involved in development beyond zoning and land use decisions. Some of them were mentioned. ODEQ is one of them. ODOT will be involved when development begins to occur around their right-of-way as it relates to connections. The Office of Surface Reclamation, if any mines need to be reclaimed, there is an office here in Tulsa that oversees that process and that enforces those regulations. Staff stated if you look through our zoning requirements, which is what we're here to talk about today, that is not where those requirements live and it's why we are not the entity that has those records. Ultimately, there are requirements of a property owner and diligence that's required of a property owner when they go through and try to embark on something like this, that they need to ultimately satisfy any of those requirements.

Commission Action

Motion: Recommend approval of MPD-6 per staff recommendation and subject to development standards found in the January 27, 2026 Fair Oaks Master Plan Development District.

Motion by: Fugate Second by: Craddock

Vote: 10-0-0

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner-Addison, Walker

Nays: none

Abstentions: none

Absent: Whitlock

Property Description

All of the following Sections are in Township 19 North Range 15 East, Wagoner County, State of Oklahoma:

- Section 3: All
- Section 4: The W/2 & SE/4 & E/2 of NE/4 of NE/4 & SW/4 of NE/4 of NE/4 & S/2 of NE/4 & NW/4 of NE/4
- Section 5: The E 1,700' of NE/4 & E 1,700' of S/2 of S/2 & S/2 of S/2 of NE/4 of SE/4
- Section 7: The NW/4 of NE/4 & SE/4 of NE/4 & W 25 acres of NE/4 of NE/4
- Section 8: The E 1,700' of E/2
- Section 9: All
- Section 10: The W/2 & SE/4
- Section 14: The SW/4
- Section 15: The N/2 & SW/4 & N/2 of SE/4 & SE/4 of SE/4 & W/2 of SW/4 of SE/4
- Section 16: All
- Section 17: All
- Section 18: SE/4
- Section 20: NE/4
- Section 21: All
- Section 22: W/2 & W/2 of SE/4
- Section 23: NW/4

Less and except the following, all of which lies within the City Limits of the Town of Fair Oaks:

a Continuous 70' strip or parcel of land beginning at the NE corner of Section 3 and ending at the SW corner of Section 23

AND

a 20' continuous Strip or parcel of land centered beginning at the SW corner of the SW of Section 10 then, West to the SE corner of the NW of Section 16 then south ending at the SW corner of the NW of SE of SW

AND

the S/2 of SW of SE and the S/2 of SE of SW Section 16

AND

the N/2 of NE of NW and the N/2 of NW of NE Section 21

4. PUD-876 (County)

Location: 9802 N. Yale Avenue, Sperry, OK 74073

County Commission District: 1

Applicant: Robert Bell, Bell Land Use, LLC

Action Requested: Approval of new PUD Request

Staff Recommendation**SECTION 1**

1. PUD-876, as outlined in Section 2, is consistent with the policy and intent of the Highway 75 Corridor Planning Area designation in the Tulsa County Comprehensive Plan;
2. The proposed Planned Unit Development conforms to the applicable provisions of the Tulsa County Zoning Code;
3. The proposed development standards provide opportunities for innovative land development while establishing appropriate intensity and compatibility with adjoining and proximate properties; and
4. The details outlined in Section 2 provide flexibility and creativity in site design to maximize the effective use of site features.

Based on these findings, staff recommends approval of PUD-876 as outlined in Section 2.

SECTION 2**PUD-876 DEVELOPMENT STANDARDS**

The intended use for this project is to establish warehouse, commercial, and wholesale uses which shall be governed by Tulsa County Zoning Code, supplemental regulations, and use dimensional standards in the current CS zoning guidelines except as hereinafter modified:

Permitted Uses:

All uses permitted by right within the CS (Commercial Shopping) zoning district. Any use not specifically listed below is prohibited. The following uses are allowed as permitted uses:

Lodging Use Category

- Hotel/Motel

Vehicle Sales and Service Use Category

- Personal Vehicle Sales and Rentals (provided that all vehicles must be stored in an enclosed building)

Wholesale, Distribution & Storage Use Category

- Wholesale, Distribution, & Storage, (Provided no outdoor storage)

Bulk and Area Requirements

- Floor area ratio (Maximum) for all Lots 75%
- Minimum Setback from interior Property Lines Greater than 5 Feet
- Minimum Setback from adjacent property Line: CS Zone
- Minimum Setback from interior parking lots and circulation roadways 10 Feet
- Minimum Setback from US Highway 75 right of way line: 25 Feet
- Minimum Setback from Yale Avenue 50 Feet
- Maximum Permitted Building Height: N/A

Screening:

- Per CS (Commercial Shopping) Zoning District

Landscaping:

- In an effort to meet the aesthetic and green space vision of the Highway 75 Planning Corridor the building permit submittal shall include a landscape plan that is generally consistent with the concept plan included in the staff report and must meet or exceed the following standards.
 - Landscape edge along the arterial street frontage must include a 10 wide buffer between the planned right of way and any parking lot.
 - The edge must be planted with an evergreen shrub choice with a 5-gallon minimum size at installation with an anticipated a continuous screen within 3 years of installation.
 - Trees must be installed with a maximum spacing of 75 feet and must be a mix of evergreen and deciduous trees. The minimum standard for trees shall have a 2-inch caliper and minimum height of 8 feet.
 - Parking lot planting as shown on the concept plan shall meet the following standards.
 - The parking lot islands may not be less than 8 feet wide with a minimum surface area of 130 square feet
 - Each island must have at least two trees meeting the same standard as outlined above. Each island must have a minimum of 4 shrubs.

Lighting:

- Exterior area lighting shall be limited to shielded fixtures designed to direct light downward and away from any adjacent property or public right of way. Street and parking lot lighting shall not exceed 19 feet in height and be approved by Tulsa County Building Department prior to installation.

Signage

- **General requirements:**
- Center 75 may place one Development ground signs at the main entrance to Yale Avenue, and one along the US Highway 75 right of way.
- These Ground signs identifying the users in the Development shall be limited to 275 square feet and shall not exceed 30 feet in Height.
- Wall or canopy signs within the development shall not exceed an aggregate display surface area of 2 square foot per each lineal foot of the building wall to which the sign or signs are affixed. Wall and canopy signs shall be further restricted as follows:
 1. A wall or canopy sign shall not extend above the top of the parapet or building wall on which it is located.
 2. During the period of construction, but not exceeding 24 months, a maximum of two signs advertising the construction may be erected on the Elm Street frontage of the development and along the US Highway 75 right of way. This sign shall not exceed 40 square feet display.

Parking

- Parking Spaces design and count shall comply with the requirements of the Tulsa County Zoning Code for the use being installed.

Drainage and Utilities

- All public utilities are available to the site and shall be addressed in the required platting requirements.

- The development will be required to submit a detailed drainage plan to the County Engineer for review and approval in the platting process.

PLATTING REQUIREMENT

- No building permit will be issued until the planned unit development site has been included within a subdivision plat submitted to and approved by Tulsa County Planning Commission and Tulsa County and duly filed of record, provided that one building permit can be issued for the entire property prior to platting if it can be demonstrated that it is in compliance with the PUD Standards. (Section 5.20.0 PUD Approval Procedures)
- The required subdivision plat will include covenants of record implementing the development standards of the approved planned unit development. (Section 5.20.0 PUD Approval Procedures)

SITE PLAN REVIEW

- No building permit shall be issued until a detailed site plan (including landscaping, lighting, and all standards required in the Tulsa County Zoning Code) of the proposed improvements has been submitted to Tulsa County and approved as being in compliance with the development concept and development standards of this PUD-876

EXPECTED SCHEDULE OF DEVELOPMENT

- Development of the project is expected to commence and be completed as market conditions permit.

SECTION 3

DEVELOPMENT CONCEPT

"Center 75 Business Park" - The proposed development is intended to provide a mix of trades and services, warehousing, with a limited retail component, and is submitted as a Planned Unit Development (PUD) pursuant to the provisions of the Tulsa County Zoning Code.

The subject property consists of approximately 16.56 acres, with approximately 15.66 acres remaining after the dedication of required rights-of-way. The site is located immediately north of East 96th Street North along North Yale Avenue and has frontage on Yale Avenue. The property also abuts U.S. Highway 75 to the west and includes approximately 660 feet of highway frontage. The subject property is located within the North Tulsa County Highway 75 Corridor Planning Area as designated in the Tulsa County Comprehensive Plan. The proposed development incorporates the characteristics identified in the April update to the Comprehensive Plan for the Highway 75 Corridor and promotes a mix of commercial and industrial uses, with an emphasis on limiting outdoor storage of materials and products.

The Highway 75 Corridor Plan emphasizes the preservation and enhancement of corridor aesthetics. The proposed development incorporates a landscape plan designed to maintain a greenbelt adjacent to the highway and includes drainage facilities with berms and appropriate setbacks. These design elements are intended to protect and reinforce the desired visual character of the corridor.

Development pursuant to this PUD shall comply with all requirements of the Tulsa County Fire Marshal and County Engineer.

Comprehensive Plan Considerations

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG	Rural Residential/Agricultural; Highway 75 Planning Area	Vacant
East	AG	Rural Residential/Agricultural	Large Lot Residential
South	AG & CS	Rural Residential/Agricultural; Highway 75 Planning Area	Vacant
West (across Highway 75)	RS-3 & CS	Highway 75 Planning Area	Single unit detached houses at higher densities (approximately 0.28 acre lots)

Small Area Plans

None

Transportation

Major Street & Highway Plan: North Yale Ave is classified as Secondary Arterial.

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 243598, dated February 01 2018, established zoning for the subject property.

TMAPC Comment:

Mr. Craddock thanked Mr. Bell for working well within the Highway 75 Corridor plan.

Applicant Comments:

Robert Bell stated that this plan is in line with the April changes to the Highway 75 Corridor. PUD-876 will limit objectional uses in this area that are starting to expand and provide design standards beyond zoning code requirements.

Speakers:

(+) Richard Yorman, 6443 North Dogwood Trail, Owasso, Oklahoma 74055, states that he supports the development and had questions for the owner and would meet with them after the meeting.

Commission Action:

Motion: To approve the PUD-876 per staff recommendation.

Motion by: Craddock Second by: Turner Addison

Vote: 10-0-0

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner Addison, Walker

Nays: none

Abstentions: none

Absent: Whitlock

Legal Description:

THE NORTH HALF OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER (N/2 SE/4 SE/4) OF SECTION SIXTEEN (16), TOWNSHIP TWENTY-ONE (21) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN, LESS HIGHWAY 75 RIGHT-OF-WAY ON THE WEST SIDE THEREOF, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF.

DRAFT

Public Hearing - Plats

Review and possible approval, approval with modifications, denial, or deferral of the following:

5. **126th Business Park (County)**

Location: Southwest corner of 126th Street North and North 129th East Avenue

County Commission District: 1

Applicant: Alan Betchan, AAB Engineering

Action Requested: Preliminary Plat Approval (Continued from January 7, 2026)

Staff Recommendation

The preliminary plat for 126th Business Park is presented with one phase and an anticipated completed schedule that will not exceed the two years outlined in the subdivision regulations. Tulsa County will not release the final plat until required infrastructure is installed and accepted by Tulsa County engineering department. The proposal lies within the commercial and transitional designation of the Tulsa County Comprehensive Plan, which adopted the land use designations in place by the City of Owasso Comprehensive Plan. This proposal is compatible with this designation.

126th Business Park - (County)

SW corner of 126th St. N. and N. 129th E. Ave.

This plat consists of 1 lot, 1 blocks on 1.94 ± acres.

TMAPC recommended approval for CG zoning at the November 5, 2025 meeting and will be forwarded to the Tulsa County Board of County Commissioners at the next available meeting for the final zoning resolution.

The Technical Advisory Committee (TAC) met on December 18, 2025, and provided the following comments:

1. **Zoning:** Proposed lots conform to the requirements of the CG district. Planning Services will provide comments prior to final plat release.
2. **Addressing:** INCOG will assign addresses. Include assigned addresses on face of the final plat and provide address disclaimer.
3. **Transportation & Traffic:** Final Street construction plans must be approved by the County Engineer and installed prior to final plat release.
4. **Sewer/Water:** On-site sewage septic disposal via ODEQ approved system. 20 ft. utility easements are needed along section line roads at a minimum. Water line plans must be submitted to Rural Water District No. 3, Washington County. Additional infrastructure may be needed based on water demands. All requirements of the rural water district must be met for final plat approval.
5. **Stormwater, Drainage, & Floodplain:** Plans for stormwater and drainage must be approved by the Tulsa County Engineer and improvements must be in place prior to final plat approval. Provide access to reserve area for maintenance.
6. **Utilities: Telephone, Electric, Gas, Cable, Pipeline, Others:** All utilities indicated to serve the site must provide a release prior to final plat approval. Provide a Certificate of Records Search from the Oklahoma Corporation Commission to verify no oil & gas activity on the site.
7. **Engineering:** Tulsa County Engineering Department release is required prior to final plat approval.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Commercial

Designation Description: The Commercial Land Use District represents areas of retail trade and services. Typically, these areas are located around nodes of arterial street intersections or in some cases, at intersections of collectors and arterials. Commercial Districts can also be found in corridors that have an established commercial use pattern, such as the Smith Farm area, or highly visible areas, such as along US-169, SH-20, and 116th St. N. west of US-169. The Commercial District includes uses that range from small neighborhood convenience shopping areas, single free-standing buildings, big box retailers, restaurants, automotive services centers, and other similar retail uses.

Access is a key factor in the location of Commercial Districts. A site with poor access or that is difficult to get to is prone to fail; whereas a site with good and safe access will stand a better chance of survival. In general, the development of long commercial strips around the perimeters of square miles should be avoided as can present problems with access control. In all cases of commercial development, access management should be carefully controlled with design treatments such as mutual or shared access drives and cross connections easements or agreements.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North Unincorporated Tulsa County	AG Unincorporated Tulsa County	Residential Unincorporated Tulsa County	Residential Collinsville School
East Owasso	RS-3 Owasso	Residential Owasso	Residential
South Unincorporated Tulsa County	AG Unincorporated Tulsa County	Transitional Owasso	Residential
West Unincorporated Tulsa County	AG Unincorporated Tulsa County	Transitional Owasso	Residential

Staff recommends **APPROVAL** of the preliminary subdivision plat subject to the following:

- 1) Conditions provided by TAC,
- 2) All other requirements of the TMAPC Subdivision and Development Regulations.
- 3) Tulsa County Engineering Department release is required prior to final plat approval.

Transportation

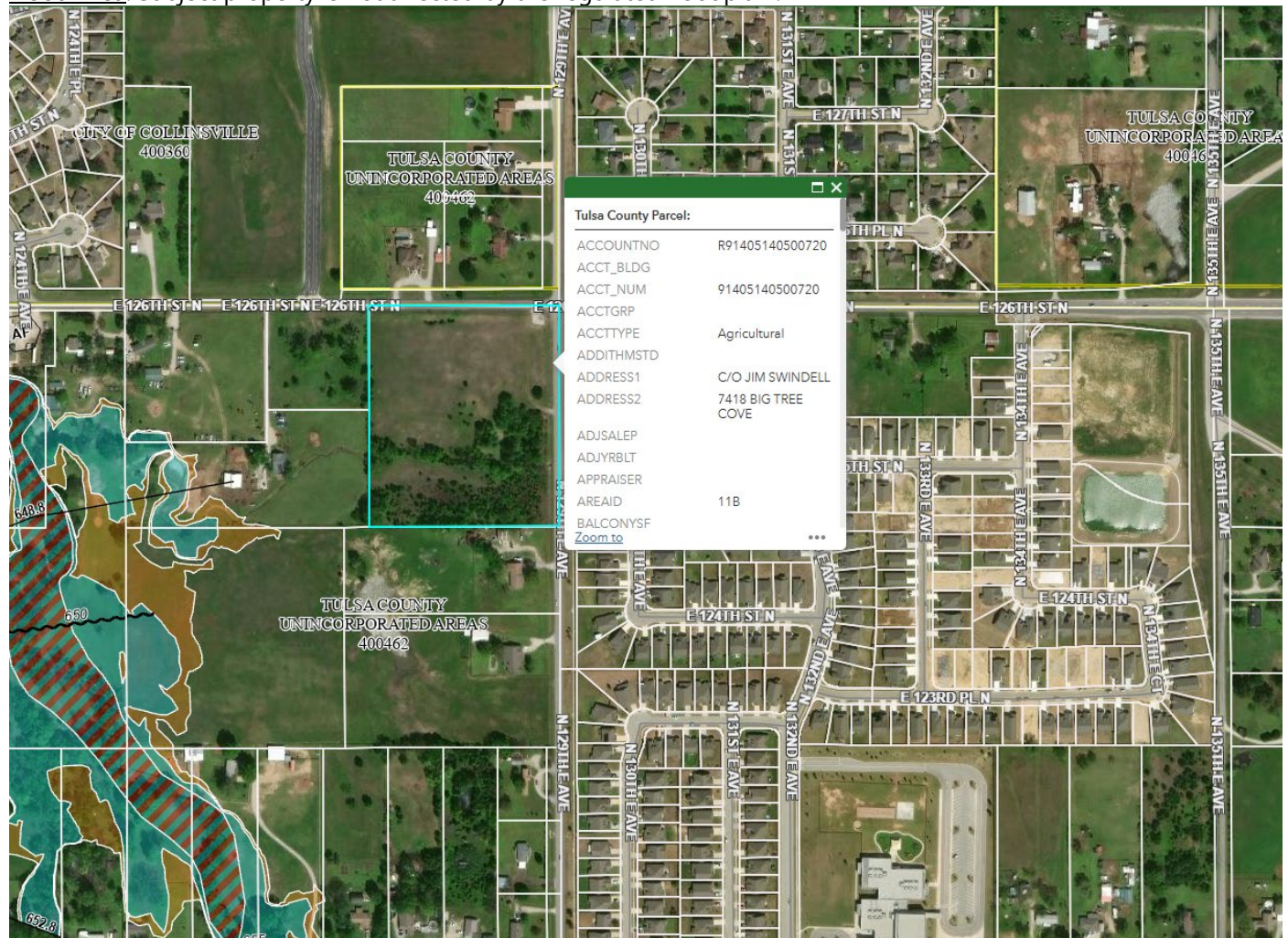
Major Street & Highway Plan: E. 126th St N. is classified as Secondary Arterial & N. 129th East Ave is classified as Secondary Arterial.

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Flood Area: Subject property is not affected by the regulated floodplain.



Zoning History

CG Zoning pending

None

Agreed with staff recommendations

None

Motion: To approve Preliminary Plat for 126th Business Park per staff recommendation.

Motion by: Craddock Second by: Humphrey

Vote: 10-0-0

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner Addison, Walker

Nays: none

Abstentions: none

Absent: Whitlock

Legal Description:

PART OF THE THE NORTHEAST QUARTER OF THE NORTHEAST QUARTER (NE/4 NE/4) OF SECTION FIVE (5) TOWNSHIP TWENTY-ONE (21) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA.

DRAFT

Public Hearing – Plats

6. **Air Guard Substation**

Location: North of the Northwest corner of East 46th Street North and North Mingo Road

City Council District: 3

Applicant: Juan Ludwig

Action Requested: Preliminary Plat Approval

Staff Recommendation

The plat consists of 4 lots, 2 blocks, ±78.6 acres. Staff recommends **approval** of the preliminary subdivision plat and a modification of section 5-130.1 of the subdivision and development regulations to waive the requirement that lots must be served by a sanitary sewer system and public water supply. Approval is subject to the following conditions provided by the Technical Advisory Committee (TAC) and all other requirements of the Subdivisions Regulations, finding that the proposed preliminary subdivision plat complies with all other applicable regulations. The applicant has provided their written justification for the request stating that the proposed lot is an electrical substation that will not be utilizing water or sanitary sewer service. In recommending approval for the modification staff finds that the request is not detrimental to public safety, health or welfare; is not injurious to other property or improvements; or impair the spirit, purposes or intent of applicable zoning regulations of comprehensive plan policies.

A City of Tulsa release letter is required prior to final plat approval. TAC Conditions:

Zoning: Property is zoned IL. The intended use was approved as a special exception by the Board of Adjustment and proposed lot layouts meet the standards of that district.

Engineering Graphics

- Submit subdivision control data sheet with the final plat.
- Remove the contours on the final plat submittal.
- Under the engineer/surveyor heading the CA number has expired.
- Provide a one square mile Location Map of section 12 township 20 range 13. Within the Location Map provide all the platted properties. Label all other land in the section as "unplatted". Label the location of the plat in Location Map as either "project location" or "site".
- Under the Basis of Bearings information include the coordinate system used. Provide a bearing angle preferably shown on the face of the plat.
- Graphically show all property pins found or set that are associated with the plat. Either have a legend entry showing the found or set symbology or label each location with text.
- Water and Sewer prefers to see the plat tied to a section corner, half section, or quarter section. That being labeled graphically on the face of the plat as the POC (point of commencement) with a bearing angle and distance to the POB (point of beginning). All of this incorporated into a metes and bounds written legal description of the property.
- Graphically label the POB (point of beginning) on the face of the plat.
- Provide the date of the last survey site visit on the face of the plat.

Addressing

- The assigned address for the Air Guard Substation is 4920 N MINGO RD E. Change the address listed on the plat to 4920 N MINGO RD E. Address 4950 N Mingo Rd is an existing address that is assigned to the building on parcel 52225031200210.

Article 5 of the TMAPC Subdivision and Development Regulations: Design and Improvements

Required Infrastructure and Public Improvements (5-020)

- Infrastructure improvements required include sanitary sewer, storm sewer, driveways, and sidewalks & ADA compliance. Detention requirements are in question, and Fee-in-lieu-of detention may be allowed if required drainage improvements can be implemented. IDP must be approved prior to plat release.

Streets (transportation) (5-060)

- N Mingo is a Secondary Arterial Street that requires a total ROW of 100' or 50' from the Section line. ROW dedication may need to occur.

Streets (fire) (5-060)

- No Comments.

Sidewalks (5-070)

- No Comments.

Protection From Flooding and Other Natural Hazards (Floodplain) (5-090)

- No Comments.

Stormwater Management (5-100)

- Outstanding issue of public storm sewer system improvements and/or detention must be resolved based on designs to be provided by applicant.

Sewage Disposal (5-130)

- Sanitary sewer main extension will be required for the site. Provide 17.5' perimeter easement or other adequate easements for the extension. **Applicant has requested a modification of this requirement.**

Water Supply (5-130)

- Label book & page of dedicated R/W of Mingo Rd and the width size along the tract frontage.

Easements (5-150)

- If detention remains part of the final designs, detention and drainage easements are required.
- If they will be created by separate instruments should be shown on the face of the plat with filed instrument number.

Streets and Stormwater

- No comment.

Deed of Dedication:

- Legal to comment after submittal of Final Plat.

Comprehensive Plan Considerations**Land Use Plan**

The subject property is designated as Employment by the Tulsa Comprehensive Plan. **Employment** is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The Industrial Site Suitability map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	Industrial	Employment	IL
East	Building supplies business	Employment	IM
South	Residential	Employment	AG
West	Vacant	Employment	IL

Small Area Plans

The subject properties are not located within a small area plan.

Development Era

The subject property is in an area developed during the Late Automobile Era (1950s-present), which has grown since the mainstreaming of automobile-centric lifestyles, with a high degree of separation between residential and nonresidential uses, and low levels of street connectivity. In these areas, transportation is nearly exclusively concentrated on the mile-by-mile arterial grid, and major streets are often both transportation corridors and destination corridors, which can lead to traffic congestion. Nonresidential uses are predominantly located at the intersections of major arterial streets. Priorities in these areas include commercial revitalization, placemaking, community gathering opportunities, conservation of natural areas, a high degree of privacy, one-stop shopping, and commuting routes.

TransportationMajor Street & Highway Plan:

- East Admiral Place: Secondary Arterial. Right-of-way is in place.
- North Mingo : Secondary Arterial. Right-of-way is in place.

Comprehensive Plan Street Designation: N/A

Transit: None available.

Existing Bike/Ped Facilities: None.

Arterial Traffic per Lane:

Arterial Traffic - North (E 56th St N - 1,109 Vehicles per Lane)
Arterial Traffic - East (N Mingo Rd - 2,611 Vehicles per Lane)
Arterial Traffic - South (E 36th St N/E 46th St N/E Port Rd/Mohawk Blvd - 1,895 Vehicles per Lane)
Arterial Traffic - West (N Lewis Ave - 2,198 Vehicles per Lane))

Environmental Considerations

Tree Canopy Coverage: Tree canopy in the area is 20-30%. Significant effort should be given to the preservation of mature stands of trees. Tree canopy removal should be minimized, and replacement of trees that need removing should be encouraged.

Parks & Open Space: N/A.

TMAPC Comments

None

Applicant Comments

The applicant was not present, but staff stated he spoke with the applicant and that they agreed with staff recommendation.

Speakers

None.

Commission Action

Motion: Approve the preliminary subdivision plat and modification of section 5-130.1 of the Subdivision and Development Regulations to waive the requirement that lots must be served by a sanitary sewer system and public water supply for Air Guard Substation, per staff's recommendation.

Motion by: Humphrey Second by: Bulmash

Vote: 10-0-0

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner-Addison, Walker

Nays: none

Abstentions: none

Absent: Whitlock

DRAFT

Public Hearing – Accelerated Release of a Building Permit

Review and possible approval, approval with modifications, denial, or deferral of the following:

7. LDF Park

Location: South of the intersection of East Admiral Place and Interstate I-44

City Council District: 3

Applicant: Wallace Design Collective

Action Requested: Accelerated Release of Building Permits

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Approve the accelerated release for a building permit , per staff's recommendation.

Motion by: Bulmash Second by: Shivel

Vote: 10-0-0

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner-Addison, Walker

Nays: none

Abstentions: none

Absent: Whitlock

Public Hearing – Comprehensive Plan Conformance

Review and possible approval, approval with modifications, denial, or deferral of the following:

8. Consider adopting a resolution of the Tulsa Metropolitan Area Planning Commission determining that the **Second Amended Downtown Area Economic Development Project Plan** is in conformance with the Tulsa Comprehensive Plan and recommend its approval to the City of Tulsa

Staff Recommendation

Adopt a resolution of the Tulsa Metropolitan Area Planning Commission determining that the Second Amended Downtown Area Economic Development Project Plan **is** in conformance with the Tulsa Comprehensive Plan and recommend its **approval** to the City of Tulsa.

Background

The Oklahoma Constitution authorizes special financing tools to assist with the development or redevelopment of areas determined by a city, town, or county to be unproductive, undeveloped, underdeveloped, or blighted. The Local Development Act provides those tools and guidelines limiting their use to areas where investment, development, and economic growth are difficult but possible if the Act is used.

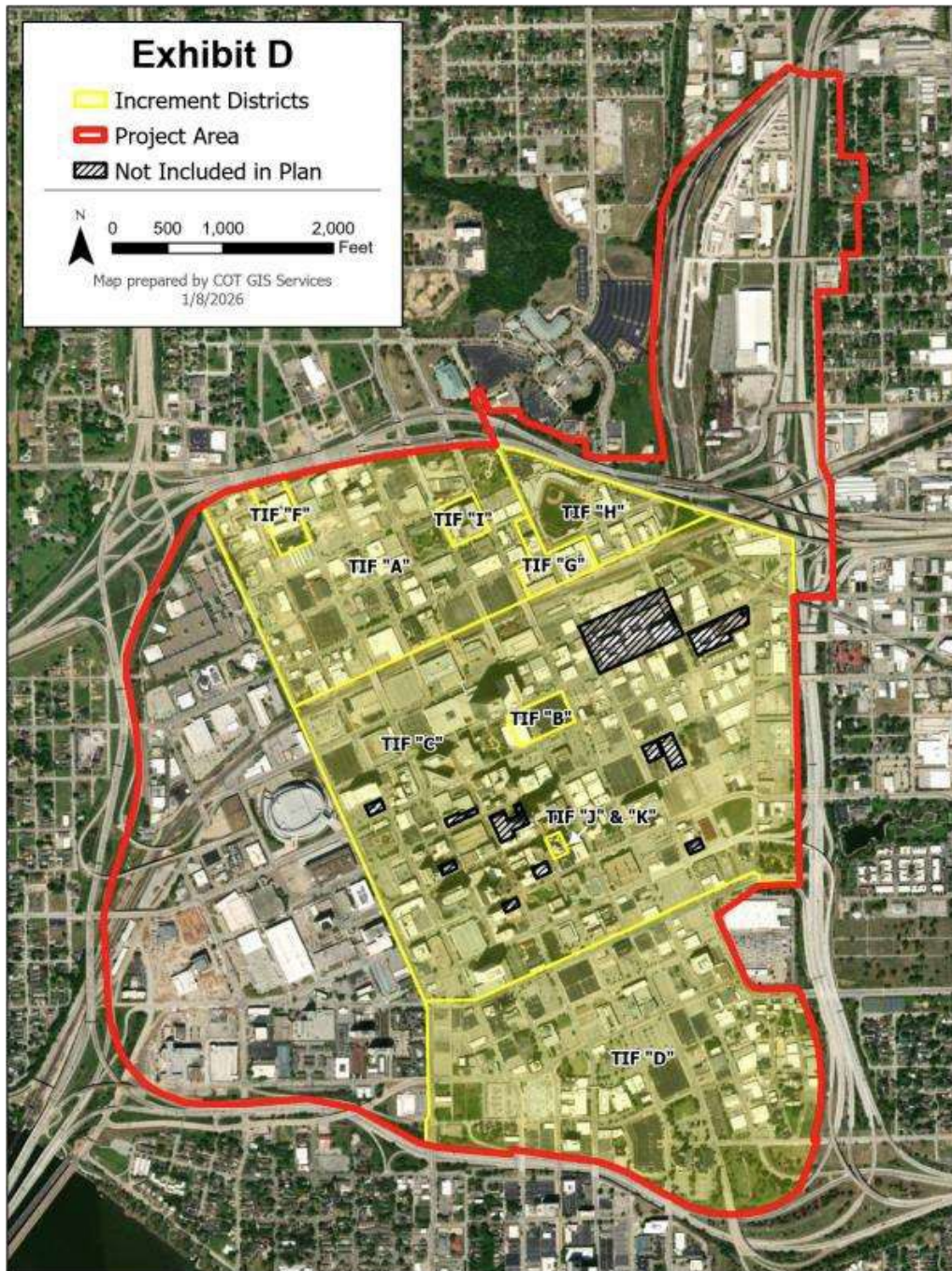
The Downtown Area Economic Development Project Plan ("Project Plan") is a financing tool necessary for the implementation of the City's vision. This is a project plan as defined under the Oklahoma Local Development Act, 62 O.S. §850, *et seq.* ("Act").

One of the Act's tools is tax increment financing, which allows a city, town or county to direct the apportionment of an increment of certain local taxes and fees to finance public project costs in order to stimulate development in the defined area. The ad valorem taxes are generated by the project(s) in the increment district. The increment district is established by the development and approval of a project plan, which specifies the project area, the boundaries of the increment district, the objectives for the project area, the activities to be carried out in furtherance of those objectives, and the costs.

The Project Plan seeks to provide an economic structure and funding mechanism authorized by the Act for a substantial portion of the local public investment necessary to provide the public improvements recommended by the Downtown Area Economic Development Plan and to generate additional private investment throughout the Project Area. Public investments are planned for: approved public infrastructure, development financing assistance, and support for public education. The Project Plan, in Section IX(C) authorizes a revenue sharing formula to support the Tulsa Public Schools (Independent School District No. I-1). Funding for these public investments will be generated by the implementation of multiple Increment Districts.

The Downtown Area Economic Development Project Plan is a TIF. The Project Area is the area in which project activities will take place and project expenditures may be made. The Project area is generally located south of Highway 412, west of the Cherokee Expressway, north of Highway 64, east of North Denver Avenue, as well as a portion north of Highway 412 along Highway 75.

Map of Project Area and Increment Districts



Objectives

The Project Plan and the Increment Districts will be used to pay the public costs of projects that support the following objectives:

- A. To facilitate the development of the Project Area and initiate a catalytic effect for surrounding or nearby neighborhoods in downtown Tulsa.

- B. To provide a funding mechanism for a substantial portion of the local public investment required to fund identified public infrastructure for the Project Area.
- C. To enhance the tax base and make possible investment, development, and economic growth that would otherwise be difficult without the Project and the apportionment of incremental tax revenues.
- D. To activate the street level and enhance pedestrian accessibility within downtown Tulsa.
- E. To establish minimum design standards to promote high quality development and placemaking for the Project Area.
- F. To create destinations that encourage private investment and activity supporting a 24/7 environment downtown.
- G. To fund implementation of adopted plans and policies related to development including Complete Streets, Tulsa, Oklahoma Downtown Walkability Analysis, Go Plan, Downtown Area Master Plan, Downtown Streetscape Master Plan, PLANiTULSA.
- H. To Support the development of housing in a variety of types and with a range of prices, including housing that is affordable to residents with incomes at or below the area median.
- I. To repurpose and activate vacant and underutilized property and support revitalization of existing historic resources and structures.
- J. To ensure access to open space, parks, trails and the Arkansas River from all parts of downtown Tulsa.
- K. To support transit and transportation systems and networks connecting downtown Tulsa to other parts of the City and beyond.

Statement of Principal Actions

Implementation actions for the project, including all necessary, appropriate and supportive steps, will consist principally of the following:

- A. Project planning, design, and approval.
- B. Leveraging private development, including residential, commercial, office, retail, entertainment, and mixed-use, pursuant to development or redevelopment agreements with the Tulsa Authority for Economic Opportunity, a public trust ("Authority") or other public trust designated by the City.
- C. Assisting the financing of other public development costs and facilities, including without limitation planning, financing, acquisition, construction, and long-term leasing or disposition of property and public facilities pursuant to development or redevelopment agreements with private developers or designated public entities, and providing for development of public or private facilities to be financed in whole or in part by apportioned tax increments from the Increment District created pursuant to this Project Plan.

- D. Financing authorized project costs in support of economic development and neighborhood revitalization within the Project Area.
- E. Distribution of a portion of the ad valorem increment to Tulsa Public Schools (Independent School District I-1).

Review of the Project Plan for Conformance with the Tulsa Comprehensive Plan

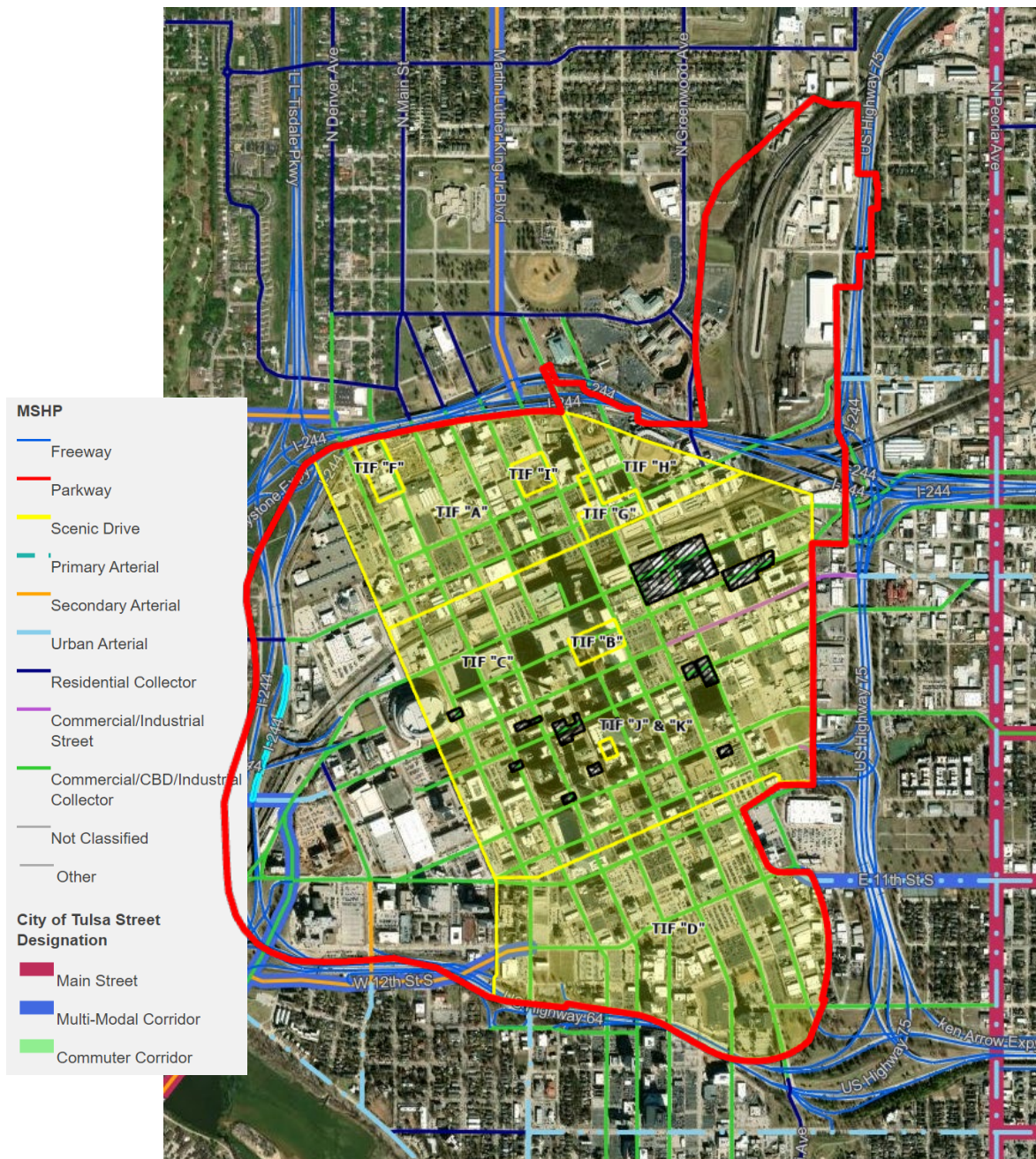
Prior to submittal to City Council, TMAPC is asked to review the Project Plan and adopt a resolution stating that the plan is in conformance with the adopted Tulsa Comprehensive Plan. Staff analysis will focus on six aspects of the *Tulsa Comprehensive Plan*: the Major Street and Highway Plan; Land Use Map; Comprehensive Plan Priorities; and *Downtown Area Master Plan*, *Brady Arts District Small Area Plan*, and the *Unity Heritage Neighborhoods Plan*.

Major Street and Highway Plan

The Major Street and Highway Plan (MSHP) identifies the following street and highway classifications in or near the project area:

- Freeways:
Highway 412, Interstate 244, US Highway 75, Cherokee Expressway, US Highway 64
- Secondary Arterials:
S Houston Avenue
- Secondary Arterials designated as Multi-Modal Corridors:
Martin Luther King Jr Boulevard, W 12th Street S west of S Denver Avenue
- Urban Arterials:
S Denver Avenue south of US Highway 64, E 3rd Street S East of US Highway 75, E 3rd Street between S Heavy Traffic Way and S Houston Avenue
- Urban Arterials designated as Multi-Modal Corridors:
E 11th Street S east of Elgin Avenue, Charles Page Boulevard west of S Heavy Traffic Way
- Commercial/CBD/Industrial Collector
S Houston Avenue between, W 3rd Street and W 7th Street, S Denver Avenue, S Cheyenne Avenue, S Boulder Avenue, S Main Street north of E 1st Street and south of W 6th Street, N Boston Avenue north of E Archer Street and a segment north of E 1st Street and south of E 3rd Street, Martin Luther King Jr. Boulevard/S Cincinnati Avenue north of the Broken Arrow Expressway, N Detroit Avenue, N Elgin Avenue, S Kenosha Avenue north of E 2nd Street, W Reconciliation Way, E Archer Street west of Interstate 244, E 1st Street, W 1st Street, S Heavy Traffic Way, E 2nd Street, W 2nd Street, E 3rd Street west of S Detroit Avenue, W 3rd Street east of S Houston Avenue, E 4th Street, W 4th Street, E 6th Street, W 6th Street, E 7th Street, W 7th Street, E 8th Street, W 8th Street, E 10th Street, W 10th Street, W 11th Street, E 13th Street west of S Cincinnati Avenue
- Commercial/Industrial Streets:
E 3rd Street west of S Detroit Avenue, S Kenosha Avenue between E 2nd Street and E 7th Street, and S Kenosha Avenue between E 7th Street and E 8th Street
- Residential Collector:
N Greenwood Avenue north of E Archer Street, S Cincinnati Avenue south of Broken Arrow

Expressway, S Houston Avenue between S Heavy Traffic Way and W 3rd Street, W Archer Street west of Interstate 244



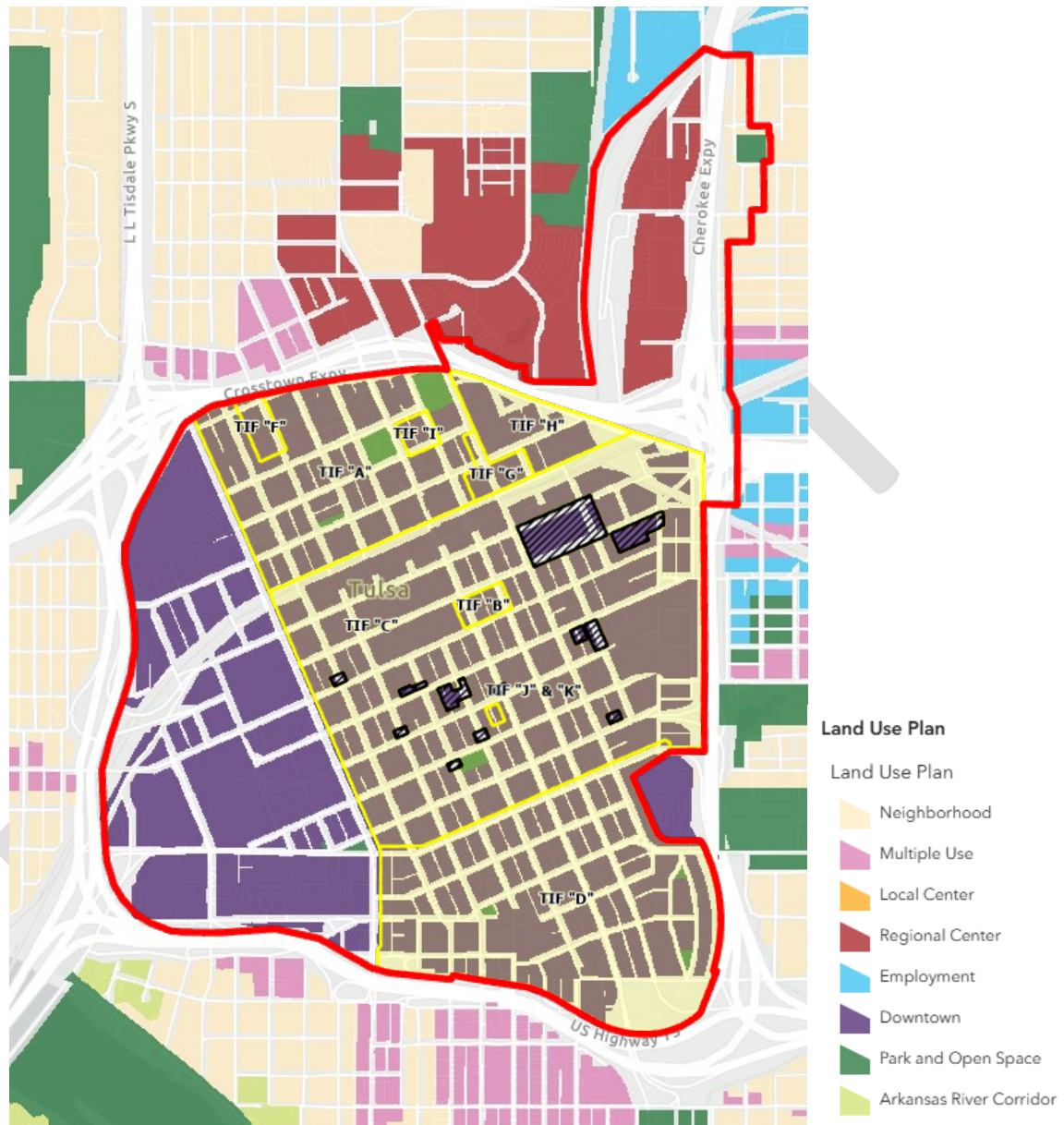
Comprehensive Plan Land Use Map

Land Use Designations

The "Objectives" and "Statement of Principal Actions" in the Second Amended Downtown Area Economic Development Project Plan are fully consistent with the Land use designations "Downtown", "Regional Center", and "Parks and Open Space".

- **Downtown** (shown in purple):
Accounts for most properties in the project area within the Inner Dispersal Loop.
- **Regional Center** (shown below in red):
Accounts for most of the project area above Interstate 244.

- **Neighborhood** (Shown is light yellow)
Accounts for a small strip north of Interstate 244 and east of US Highway 75.
- **Parks and Open Space** (shown in dark green):
Accounts for a small areas scattered within the Inner Dispersal Loop and one area north of Interstate 244 and east of US Highway 75.



Comprehensive Plan Priorities

The *Tulsa Comprehensive Plan* contains multiple priorities, goals, and policies to promote economic development to attract investment, enhance the tax base, stimulate economic growth, and improve the quality of life in and around the City. The following are portions of the Comprehensive Plan (not all encompassing) that align with the objectives of the Second Amended Downtown Area Economic Development Project Plan and the supporting Tax Incremental Financing Districts that can be implemented through the benefits of the Project Plan.

Future Land Use

- GOAL LU 1 Tulsa's land use decisions promote fiscal stability and move the city towards the community's vision.
 - ACTION LU 1.3.3 - Continue to include recommendations from Small Area Plans in the development of staff recommendations for land use decisions.
- GOAL LU 3 - Economic development is facilitated at the neighborhood, city, and regional scales.
 - STRATEGY LU 3.2 - Focus regional investments along major transportation corridors, including highways and public transit routes.
 - ACTION LU 3.2.1 - Direct the majority of employment growth and change to areas of the city with access to major transportation infrastructure, such as highways, railroads, public transportation, the airport, and Tulsa Ports.
 - STRATEGY LU 3.4 - Encourage continued growth and investment in downtown as a major center for jobs, transit, services, and civic and cultural institutions for the entire city and region.
 - ACTION LU 3.4.1 - Maintain downtown as the city's densest urban neighborhood, incorporating the highest potential density of commercial and residential land use.
 - ACTION LU 3.4.3 - Encourage a 24-hour downtown with a diverse mix of uses and activation at all different times of the day.
 - STRATEGY LU 3.6 - Encourage development that fills existing market gaps and provides for the necessities of life.
 - ACTION LU 3.6.3 - Encourage infill development on underutilized surface parking lots, particularly in the downtown area.
- GOAL LU 4 - Redevelopment, revitalization, and enhancement programs are focused in areas that have been economically disadvantaged.
 - ACTION LU 4.2.3 - Evaluate dedicating a portion of the ad valorem increment generated by TIF Districts located within the Tulsa Public School District catchment area to the school district.
 - STRATEGY LU 4.4 - Promote the adaptive reuse and rehabilitation of vacant or underutilized structures and buildable land to aid the revitalization of area neighborhoods and development of affordable housing.
- GOAL LU 6 - Commercial areas and activity centers complement their surrounding uses.
 - STRATEGY LU 6.2 - Encourage transit-oriented commercial, mixed-use, and residential development along existing and planned bus rapid transit (BRT) routes.
 - ACTION LU 6.2.3 - Support higher-density residential development along BRT corridors in locations identified in corresponding Land Use Frameworks.
- GOAL LU 8 - Tulsa's natural and architectural assets are preserved and enhanced.
- GOAL LU 9 - Tulsa is a leader in sustainable development practices.
 - STRATEGY LU 9.2 - Support and incentivize adaptive reuse of buildings, infill development, and brownfield redevelopment.
- GOAL LU 10 - Future growth is balanced with the ability to provide public services and infrastructure.
 - STRATEGY LU 10.2 - Prioritize compact development and infill development for more efficient use of existing infrastructure and services.

Transportation

- STRATEGY TR 5.2 - Ensure land use decisions are reflective of and responsive to the transportation infrastructure context.
 - ACTION TR 5.2.1 - Encourage compact and infill development to optimize the use of existing infrastructure.
 - ACTION TR 5.2.2 - Encourage mixed-use developments and housing near employment areas to decrease long vehicle trips.

Economic Development

- GOAL ED 1 - Economic growth and development contribute to a prosperous and diverse economy capable of providing access to economic opportunity for all Tulsans.
- GOAL ED 2 - Local and prospective businesses have easy access to a spectrum of economic development information and resources.
 - STRATEGY ED 2.3 - Maintain and promote access to economic development and revitalization tools, including tax-increment financing (TIF), business improvement districts, the Economic Infrastructure Fund, the Downtown Revolving Loan Fund, and the Property Assessed Clean Energy program.
- GOAL ED 4 - New development supports vibrant, sustainable, transit-oriented communities.
 - STRATEGY ED 4.1 - Encourage infill development in areas served by public transportation.
 - ACTION ED 4.1.2 - Create a comprehensive and flexible package of financial incentives to encourage infill in targeted areas and corridors.
 - STRATEGY ED 4.2 - Ensure that new employment development is well-connected to multimodal transportation networks.
 - ACTION ED 4.2.1 - Incentivize housing and commercial growth along high frequency transit corridors.
 - ACTION ED 4.2.5 - Encourage business expansion along transit routes to increase the amount of goods and services available to riders.
 - STRATEGY ED 4.5 - Ensure adequate infrastructure, utilities, and public safety services are in place for new and proposed development.
 - STRATEGY ED 4.6 - Foster the success of the downtown area through targeted investment, incentives, and revitalization strategies.
 - ACTION ED 4.6.2 - Use increment funding from TIF districts to accomplish downtown area development goals.
 - ACTION ED 4.6.3 - Better integrate downtown area university and college campuses through pedestrian, bike, and bus connections, and encourage additional student housing and support services.
- GOAL 5 - An adequate and appropriate supply of employment land is maintained to meet local industrial and commercial needs
 - STRATEGY 5.1 - Identify and designate "pad-ready" sites.
 - ACTION 5.1.2 - Leverage existing areas of opportunity where incentives such as New Market Tax Credits or Opportunity Zones are located.

History, Culture, and Creativity

- GOAL HCC 1 - Tulsa acknowledges its past, celebrates its diverse cultural landscapes, and embraces opportunities to preserve historic landmarks and cultural resources in all parts of the city.
 - STRATEGY HCC 1.4 - Prevent the loss of historically and architecturally significant structures by encouraging rehabilitation or adaptive reuse over demolition.

- ACTION HCC 1.4.1 - Assist owners in the pursuit of historic tax credits, grants, and other financial resources for the rehabilitation of historic buildings.
- GOAL HCC 2 - Black Wall Street and the Historic Greenwood District are memorialized and strengthened through community-driven capital and programmatic initiatives that help to educate residents and visitors of the true historical context and events of the area.
 - STRATEGY HCC 2.4 - Evaluate approaches to removing physical barriers to reconnect Black Wall Street and the Greenwood-Unity-Heritage neighborhoods.

Public Services

- GOAL PS 1 - Tulsa's land use pattern enables efficient and cost-effective distribution of public services.
 - STRATEGY PS 1.3 - Encourage infill development or development that is currently served by existing City services and infrastructure.

Downtown Area Master Plan

The *Downtown Area Master Plan* has recommendations that align with the objectives of the Downtown Area Economic Development Project Plan and the supporting Tax Increment Financing Districts.

Design Guidelines Summary

7. Historic and architecturally significant buildings should be rehabilitated and leased to new tenants as the highest preference.

Brady Arts District Small Area Plan

The *Brady Arts District Small Area Plan* has Goals and Actions that align with the objectives of the Downtown Area Economic Development Project Plan and the supporting Tax Increment Financing Districts.

- Goal 1 - Create and maintain a historic and aesthetically distinctive area.
 - Preserve/restore historic structures and other assets
- Goal 3 - Encourage amenities that benefit a mixed-use community
 - Preserve/restore historic structures and other assets
- Action 23 - Offer mixed urban lifestyle options and other strategies to attract new residents.
- Action 24 - Continue efforts to renovate upper levels of historic buildings for housing.
- Action 29 - Develop strategies to bring capital partners to the table to encourage investing.

Unity Heritage Neighborhoods Plan

The *Unity Heritage Neighborhoods Plan* has recommendations that align with the objectives of the Downtown Area Economic Development Project Plan and the supporting Tax Increment Financing Districts.

- Goal 4 - Capitalize on OSU-Tulsa, Langston University Tulsa, and proximity to Downtown to spur redevelopment of the southern edge of the Unity Heritage Area.
- Goal 7 - Enhance local commerce and access to important goods and services.

Staff Recommendation

The Objectives and Principal Actions in the Second Amended Downtown Area Economic Development Project Plan and supporting Tax Increment Financing Districts **are** consistent with the Major Street & Highway Plan, Land Use Map, Comprehensive Plan Priorities, and *Downtown Area Master Plan*, *Brady Arts District Small Area Plan*, and the *Unity Heritage Neighborhoods Plan*. Staff recommends **approval** of the Second Amended Downtown Area Economic Development Project Plan and supporting Tax Increment Financing Districts, finding it to be **in conformance** with the Tulsa Comprehensive Plan.

TMAPC Comments

Mr. Craddock asked if TIF Districts are getting property specific.

Partner Tulsa explained that they were removing the Fintube property to allow it to become its own project and creating a new TIF "tool" for the redevelopment of the Philcade building.

Speakers

(-) Michael Levinson, 2551 E. 67th St., Tulsa, OK 74136 (Aloft Hotel)

(-) Macy Synder, 4141 S. Lewis Ave., Tulsa, OK 74105 (The Mayo Hotel)

(-) John Synder, 2101 S. Madison, Tulsa, OK 74120 (Brickhuggers)

All 3 speakers strongly opposed the potential incentive package for an out-of-state developer for the Philcade building, arguing a reported \$100M+ incentive would be unfair competition in the hotel market. They contended it would cannibalize business from existing hotels and divert critical hotel tax revenue needed by Visit Tulsa to attract city-wide events. John Snyder (BrickHugger) added that the project already benefits from \$66 million in federal and state incentives, and the proposed local package was excessive and urged Planning Commission to deny it.

City Staff, Partner Tulsa and City Legal repeatedly clarified Planning Commission's very narrow role to determine if the amended TIF project plan conforms with the city's comprehensive land use plan, not to vet the economic merits or fairness of the financial incentives. Jeff Stephens from the City Legal Department emphasized this point. Staff explained that the project only involved an interior build-out with no change in land use, and does not conflict with the comprehensive plan's policies. The commission acknowledged the speakers' concerns but concluded that the proper venue for that debate was the Local Development Act Review Committee (LDARC) and the City Council.

Commission Action

Motion: To adopt a resolution declaring the **Second Amended Downtown Area Economic Development Project Plan** to be in conformance with the Tulsa Comprehensive Plan.

Motion by: Humphrey Second by: Walker

Vote: 8-2-0

Ayes: Bulmash, Cue, Fugate, Humphrey, Krug, Shivel, Turner-Addison, Walker,

Nays: Craddock, Hood

Abstentions: none

Absent: Whitlock

Other Business

None

9. Commissioner Comments

None

Adjournment

Commission Action

Motion: Adjourn

Motion by: Walker Second by: Hood

Vote: 10-0-0

Ayes: Bulmash, Craddock, Cue, Fugate, Hood, Humphrey, Krug, Shivel, Turner-Addison, Walker

Nays: none

Abstentions: none

Absent: Whitlock

There being no further business, the meeting adjourned at 3:00 p.m.